

CV-25-010560 KAUR, SANDEEP vs BAKHSHIYAR, KAMBIZ H - Defendant's Patelco Credit Union's Motion for Leave To file Cross-Complaint Against Plaintiff Sandeep Kaur– GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On August 4, 2026, Defendant Patelco Credit Union ("Patelco") submitted a motion for leave to file a compulsory cross-complaint against Plaintiff Sandeep Kaur. Plaintiff timely opposed and Patelco timely replied. Under Code of Civil Procedure section 426.50, a court must grant leave to file a compulsory cross-complaint if the moving party "acted in good faith." "A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith." (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94.) Here, the Complaint was filed on October 27, 2025. Defendant Patelco filed its Answer on January 9, 2026. Patelco subsequently discovered facts surrounding Plaintiff's conduct which form the basis for its cross-complaint. Patelco then filed the instant motion on August 4, 2026. No trial date has been set and the parties have not yet exchanged written discovery. Plaintiff's arguments in opposition fail to demonstrate that Patelco acted in bad faith. Pursuant Code of Civil Procedure section 426.50, the motion for leave to file a cross-complaint is GRANTED. Defendant Patelco is granted leave to file the Cross-Complaint attached as Exhibit C to the August 4, 2026 Declaration of Darrell V. Nguyen, and shall file and serve the Cross-Complaint within ten days of notice of entry of the order. The proposed order submitted in connection with the motion references Exhibit A instead of Exhibit C and also references appearances by specific attorneys and arguments of counsel, which may not be accurate. Moving party to submit revised proposed order within five court days consistent with this ruling.

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